



PHOTO 1 – EXISTING ACCESS DRIVE FROM FACILITY TO PROPOSED DEVELOPMENT AREA.



PHOTO 2 – EXISTING ACCESS DRIVE TO PARKING LOT.



PHOTO 3 – EXISTING PAVED PARKING LOT.



PHOTO 4 – WOODED AREA SURROUNDING EXISTING PARKING LOT.



PHOTO 5 – PAVED AREA.



PHOTO 6 – EXISTING PATHWAY.

LAND DEVELOPMENT AGREEMENT

THIS LAND DEVELOPMENT AGREEMENT (this "Agreement") is entered into as of this ____ day of _____, 202__ by and between the **Hingham Housing Authority**, having an address of 30 Thaxter Street, Hingham, MA 02043 (the "Authority"), and _____, a Massachusetts _____, having an address of _____ (the "Developer").

Recitals

WHEREAS, the Authority is the owner of a parcel of land (the "Land") located at 100 Beal Street, Massachusetts, consisting of 3.75 acres, more or less, and described in a **Quitclaim Deed recorded with the Plymouth County Registry of Deeds (the "Registry") in Book 487, Page 176;**

WHEREAS, by the vote of the Authority Board of Commissioners to dispose of the Property for affordable housing purposes on such terms and conditions as the Authority deems appropriate;

WHEREAS, on _____, the Authority issued a Request for Proposals (the "RFP"), which is incorporated herein, soliciting proposals for the development, construction and operation of _____ on _____ the Land, which is shown more particularly on the plan attached hereto as Exhibit A and incorporated herein (the "Property");

WHEREAS, the Developer submitted a proposal on _____, 202__ in response to the RFP (the "Proposal"), which is incorporated herein, proposing to construct _____ (____) dwelling units on said portion of the Property (as defined below, the "Improvements"), as more particularly described in the RFP and the Proposal, and operate an affordable housing rental development thereon (collectively, the "Project");

WHEREAS, the Authority has awarded the Project to the Developer;

WHEREAS, the Authority intends convey the property to the Developer pursuant to which the Developer will construct the Improvements and operate the Project;

WHEREAS, the obligations of the Authority and the Developer conveying the land are contingent, among other things, on the Developer obtaining the permits and approvals necessary for the construction and operation of the Project and on financing in amounts sufficient in the Authority's and Developer's reasonable judgment to construct the Improvements; and

WHEREAS, the parties wish to enter into this Agreement to memorialize the terms and conditions under which the Authority and the Developer will convey the land.

NOW, THEREFORE, in consideration of the mutual promises of the parties contained herein and other good and valuable consideration each to the other paid, receipt of which is hereby acknowledged, the parties hereby agree as follows:

I. SALE CONTINGENCIES

1.1 Disposition of the Property. The Authority shall, within thirty (30) days from the date on which the Lease Contingencies (defined below) are satisfied (the "Lease Commencement Date"), sell the Property, together with all appurtenant easements, rights, restrictions, privileges, licenses covenants, and other matters that benefit or burden the Property (collectively, the "Premises"), to the Developer for the purpose of developing and operating the Project on terms substantially similar to the terms and conditions set forth in the Ground Lease attached hereto as Exhibit and incorporated herein, which shall include terms governing the construction and development of the Project on the Property and shall be a "triple-net" lease under which the Developer shall be solely responsible for the Premises and the Project, including, without limitation, any and all insurance, operating and maintenance costs, and applicable taxes, among other costs and expenses (the "Ground Lease").

1.2 Condition of Property. The Premises will be delivered to the Developer, and the Developer, subject to the provisions of Section 2.1, hereby agrees to accept the Premises in their then "AS-IS" condition, without any representation or warranty of any kind or nature, express or implied, in fact or by law, on the part of the Authority and without recourse to the Authority. The Authority shall have no obligation to do any work on or make any improvements to or with respect to the Premises or the condition thereof. The Developer acknowledges that the Authority has no responsibility for, and hereby releases and holds harmless the Authority from any and all damages, loss, costs, expenses (including any and all attorneys' fees, and expenses of the Authority), claims, suits, demands or judgments of any nature whatsoever, related to any hazardous waste, oil, hazardous material or hazardous substances, as those terms are defined by any applicable law, rule or regulation, including, without limitation, the Massachusetts Oil and Hazardous Materials Release Prevention and Response Act, G. L. c. 21E, the Massachusetts Hazardous Waste Management Act, G.L. c. 21C, the Comprehensive Environmental Response, Compensation and Liability Act, as amended, 42 U.S.C. §§ 9601 et seq. and the Resource Conservation and Recovery Act, as amended, 42 U.S.C. §§ 6901 et seq. (herein collectively referred to as "Hazardous Waste"). The provisions of this Section shall survive the expiration and/or termination of this Agreement.

1.3 Use of the Premises. The Developer will use the Premises for the sole purpose of constructing _____ (____) residential units thereon and renting _____ (____) at affordable prices. The units shall consist of _____ (____) studios, _____ (____) one-bedroom units, _____ (____) two-bedroom units and _____ (____) three-bedroom units, subject to minor modification during the permit process.

1.4 Lease Contingencies. The Authority and the Developer shall enter into the Ground Lease on the Lease Commencement Date, which is to occur within thirty (30) days from the date on which all of the following conditions have been satisfied (collectively, the "Lease Contingencies"):

- (a) *Permits and Approvals:* The Developer shall have received final permits and approvals for construction of the Improvements and the operation of the Project, any and all appeal periods shall have expired;
- (b) *Approved Plans and Specifications:* The Authority shall have approved the Developer's plans and specifications for the Improvements to be constructed on the Property and any other improvements made on or to the Premises, showing conceptual

plans of the units, the landscaping, and the other improvements to be constructed on the Premises and substantially in conformity with the RFP and the Proposal (the "Improvement Plans"), which approval shall not be unreasonably delayed, conditioned or withheld. The Authority and the Developer agree to cooperate reasonably and in good faith with each other to resolve any objections that either may have. The provisions of this Section are intended to refer to the approval of the Authority and do not constitute the approval of or substitute any permits or approvals required from any federal, state and/or local regulatory bodies or approvals required under any applicable laws, rules, regulations, and bylaws, including the Town of Hingham's Zoning Ordinance;

- (c) *Project Financing Closing:* The Developer shall have received firm Project financing commitments from institutional lenders and/or public or quasi-public entities, showing that sufficient funds have been committed, in the Authority's and the Developer's reasonable judgment, to construct the Improvements and to operate and maintain the Project (the "Project Funds"), and Developer shall close on such financing and receive the Project Funds on or prior to the Lease Commencement Date. The Developer shall provide the Authority with a guaranty at loan closing, given by a guarantor reasonably acceptable to the Authority, guaranteeing the Developer's obligation to construct the Project on the terms set forth in the Ground Lease;
- (d) *Affordable Housing Restriction.* On the Lease Commencement Date, the Developer will record a restriction on the Property ensuring that _____ (____) units constructed on the Property are rented to persons at affordable prices; specifically, _____ (____) units shall be rented to persons earning no more than _____ percent (____%) of the Area Median Income in the Metropolitan Statistical Area that includes Hingham ("AMI"), _____ (____) units shall be rented to persons having an income of no more than _____ percent (____%) of AMI, and the remaining _____ (____) units shall be rented to persons with incomes of no more than _____ percent (____%) of AMI, for the term of the Ground Lease, which restriction shall be on terms satisfactory to the Developer and the Authority and approved by the Massachusetts Executive Office Housing of Housing and Livable Communities ("EOHLC") under G.L. c. 184, § 31, including all the units in the Authority's Subsidized Housing Inventory ("SHI"), which may be in the form of a Regulatory Agreement acceptable to and entered into by and among the Developer, the Authority, and EOHLC, and/or a separate restriction granted by the Developer to the Authority, at the Authority's sole discretion (either or both, the "Restriction"). The Restriction shall be recorded with the Registry at the Developer's sole cost and prior to any mortgages, liens or other encumbrances recorded against the Property (unless each mortgage or lien holder shall have executed a subordination agreement, acceptable to the Authority, expressly subordinating its mortgage or other lien to the Restriction). Alternatively, or in addition to the foregoing, the Authority may, at its discretion, incorporate the terms of the Restriction in the Ground Lease; and
- (e) *Title Matters.* The Property shall be free from recorded monetary liens and from title defects or encumbrances of record that would materially interfere with the use of the Premises for the development and operation of the Project. In the event that title defects are found, the Authority will use reasonable efforts to cure said defects, provided that reasonable efforts shall not require the Authority to expend more than

\$2,500, inclusive of attorney's fees, or commence any litigation or other legal proceeding.

1.5 Lease Contingency Period. The Developer shall use commercially diligent and good faith efforts to obtain the necessary permits and approvals and financing to construct, operate and maintain the Improvements, to conduct its property inspections under Section 2.1, to review the title to the Property, and to satisfy the other Lease Contingencies within _____ () months from the date on which this Agreement (the "Initial Diligence Period"), which period may be extended by the Authority in writing only if the Authority reasonably determines that the Developer has used such efforts to satisfy the Lease Contingencies, with such extension to be no more than an additional six (6) months from the expiration of the Initial Due Diligence Period (the "Extended Diligence Period", and, together with the Initial Diligence Period, the "Diligence Period"). The Developer shall inform the Authority in writing at least every four (4) months during the Diligence Period, or at such sooner or later intervals as the Authority may reasonably request, on the efforts made by the Developer to satisfy the Lease Contingencies and provide such other information as the Authority may reasonably request to document such efforts. Time shall be of the essence hereof.

1.6 Failure to Satisfy Preconditions. Notwithstanding anything in the RFP or this Agreement to the contrary, in the event that the Lease Contingencies are not satisfied within the Initial Diligence Period, or, if extended by the Authority, the Extended Diligence Period, either party may terminate this Agreement by providing the other with at least thirty (30) days prior written notice, provided, however, that if all the Lease Contingencies are satisfied within said thirty (30) day period, this Agreement may not be terminated by either party. In the event of termination, this Agreement shall be null and void and without recourse to the parties, except for those provisions that are stated herein to survive said termination.

1.7 Title to Property. The Authority shall retain the fee to the Property, and shall execute a notice of lease for recording at the Registry.

1.8 Assignability. The Developer shall have no right to assign or transfer its rights hereunder and/or under the Ground Lease of the Property without the Authority's prior written consent, which shall not be unreasonably withheld if: (a) the assignee is a limited liability company created solely for the purpose of receiving tax credits (with the general partner thereof being owned and controlled by the Developer) or any other entity owned and controlled by the Developer, (b) the Developer sends written notice to the Authority at least thirty (30) days prior to any such transfer, notifying the Authority of the transferee's name and evidence of the control that the Developer exercises over such transferee, and obtains the Authority's written consent, (c) any such transferee or assignee enters into an Assumption Agreement, expressly agreeing to perform all of the Developer's obligations hereunder and under the Lease; and (d) the Developer shall guarantee the transferee's performance of such obligations, and shall be jointly and severally liable with the transferee until the Project has been completed. Notwithstanding the foregoing, the Developer shall have the right to assign this Agreement and the Ground Lease to EOHLC or any institutional lender providing financing for the Project in connection with a leasehold mortgage or security interest securing a loan necessary to complete development of the Project, subject to the terms of this Agreement.

II. PROPERTY INSPECTIONS

2.1 Access. The Developer and its agents, employees, representatives, consultants, contractors and invitees (with the Developer and others acting by, through or under the Developer, the “Developer Parties”) shall have the right to enter upon the Property from time to time, upon at least two (2) business days prior notice to the Authority, for the purpose of conducting its due diligence and such inspections as the Developer deems appropriate, including, without limitation, surveys; wetlands inspections and flagging and visits by the Developer’s wetlands consultants for these purposes or other wetlands inspection; geotechnical investigations of the Premises; and, if recommended pursuant to a Phase 1 assessment, soil sampling of the Premises by Developer’s environmental consultants, whether for Hazardous Waste or other purposes. The Developer may remove trees or shrubs from the Premises only if reasonably necessary to provide access for test pits and other investigations only in accordance with a plan approved by the Building Commissioner at least seven (7) calendar days prior to such removal, which approval shall not to be unreasonably withheld. The Developer acknowledges and agrees that the Authority makes no representation or warranty as to the condition of the Property, and the Developer releases and holds the Authority harmless against any claim by the Developer or any of the other Developer Parties for harm to them or their property arising from said entry. The Developer shall promptly restore the Property to substantially its condition prior to said entry and repair any damage caused to the Property. The Developer’s obligation to repair and restore the Property shall survive the termination of this Agreement.

2.2 Hazardous Materials. In the event that the Developer finds Hazardous Waste in reportable quantities on the Property and the cost of remediating the same in compliance with G.L. c. 21E to a Release Action Outcome is estimated by an engineer acceptable to both parties to exceed \$100,000.00, and informs the Authority of the same in writing (the “Environmental Notice”), and if the Authority, in its sole and absolute discretion, gives notice to the Developer of its intention to remediate such contamination within sixty (60) days of receiving the Environmental Notice and thereafter remediates such hazardous condition within a reasonable period of time, but not to exceed the Diligence Period in any event (as such Diligence Period may be extended in accordance with Section 2.1), in full compliance with applicable law, with the Authority paying all of the costs of remediation, the Developer shall fulfill its obligations under this Agreement. Nothing herein shall require or obligate the Authority to remediate any contamination on the Property. If the Authority elects not to remediate the same, the Developer may terminate this Agreement by giving the Authority thirty (30) days prior notice thereof, whereupon this Agreement shall be null and void and without recourse to the parties, except for those provisions that are stated herein to survive said termination.

2.3 Indemnification. The Developer shall defend, indemnify and hold harmless the Authority and those acting by or through the Authority from any and all liabilities, damages, loss, costs, expenses (including reasonable attorneys’ fees), causes of action, suits, claims, demands or judgments (any, “Claims”) arising out of or related to this Agreement, the rights granted under Section 2.1, the act or omission of any of the Developer Parties, for any material change in the Developer’s representations and/or warranties, for the Developer’s failure to comply with the terms of this Agreement or any applicable laws, rules, regulations and/or bylaws, and/or for any Hazardous Materials (defined below) that are brought upon, stored, located, released, discharged, possessed, managed, processed, or otherwise handled on or present on the Property, by the Developer and/or any of the other Developer Parties and/or for failing to comply with any environmental laws, rules, regulations and/or bylaws (the latter, the “Developer Hazardous Activities”), except if caused directly by the gross negligence of the Authority. The Developer shall be solely responsible for assuming and paying any and all liabilities, damages,

loss, costs expenses, causes of action, suits, claims, demands or judgments (including, without limitation reasonable attorneys' fees and experts' fees and expenses, clean-up costs, waste disposal costs and other costs, expenses, penalties and fines within the meaning of any law, regulation, code or bylaw relating to Hazardous Materials) that arise or are related to the Developer Hazardous Activities. This indemnity and hold harmless agreement shall include indemnity against all costs, expenses, and liabilities incurred in or in connection with any such Claims brought thereon, and the defense thereof. The foregoing obligations shall survive the expiration or termination of this Agreement.

2.4 Insurance. The Developer shall obtain and maintain through the term of this Agreement comprehensive general liability insurance, including coverage for bodily injury, wrongful death and property damage, in the minimum amount set forth herein to support the obligations of the Developer under the terms and conditions of this Agreement to indemnify, defend and hold harmless the Authority: General Liability: \$1,000,000.00/occurrence, \$2,000,000.00/aggregate; Bodily Injury Liability: \$1,000,000.00/occurrence, \$2,000,000.00/aggregate, and umbrella insurance in the amount of \$5,000,000.00, which shall name the Authority as an additional insured. The Developer shall provide the Authority with a copy of such insurance policy prior to entering the Property and at such times as the Authority may request, showing compliance with the foregoing provisions. The insurance coverage required hereunder shall be issued by insurance companies licensed by the Massachusetts Division of Insurance to do business in the Commonwealth of Massachusetts and having a Best's rating of A or better.

III. DEFAULT, TERMINATION

3.1 Events of Default. It shall be an event of default under this Agreement if, after the Authority has given the Developer sixty (60) days prior notice thereof, the Developer fails to proceed diligently to obtain the necessary permits and approvals, obtain financing, and/or satisfy the other Lease Contingencies that are the responsibility of the Developer, or the Developer fails to comply with any of the other material terms of this Agreement. The Authority shall have the right to terminate this Agreement and pursue any and all available rights and remedies, and, if such termination is due to Developer's failure to use good faith and commercially diligent efforts to satisfy the Lease Contingencies, the Authority shall have the right to recover any costs and expenses (including reasonable attorneys' fees) incurred by the Authority under this Agreement.

3.2 Termination. In the event that this Agreement is terminated, the Developer shall promptly repair any damage caused to the Property by the Developer or its agents, employees, contractors or representatives and restore the Property to its condition prior to the Developer's entry.

IV. GENERAL PROVISIONS

4.1 Cooperation. The Authority agrees to use reasonable efforts to assist the Developer, at the Developer's sole cost and expense, in obtaining any and all permits, approvals and other authorizations required by any governmental authorities with respect to the Project and in satisfying other Lease Contingencies that are the responsibility of the Developer, but the Developer acknowledges that the Authority has no control over and cannot guarantee that permits required from municipal boards or officers within their statutory or regulatory authority will be granted or fees will be waived.

4.2 Development of the Property. Subject to delivery of the Ground Lease of the Premises, and all other terms and conditions herein, the Developer agrees for itself and its successors and permitted assigns and at its sole cost and expense to develop the Project on the Property and substantially complete the same within _____ (____) months from the Lease Commencement Date, as evidenced by final Certificates of Occupancy for all _____ (____) units.

4.3 Costs of Enforcement. The Developer agrees to reimburse the Authority for any and all costs and expenses, including reasonable attorneys' fees and court fees, incurred by the Authority in enforcing this Agreement.

4.4 Representations and Warranties. The Developer represents that the following representations and warranties are true and accurate as of this date and shall continue as such through the date on which the Ground Lease is signed by the Developer and the Authority:

- (a) The Developer is a duly organized and existing _____ in good standing under the laws of the Commonwealth of Massachusetts and has the power and authority to enter into and perform its obligations under this Agreement, and every other agreement or instrument entered into or to be entered into by it pursuant to this Agreement.
- (b) The Developer has the power, authority, and legal right to enter into and perform this Agreement, and each other document entered into or to be entered into by it pursuant to this Agreement, and the execution, delivery and performance hereof and thereof:
 - (i) have been duly authorized;
 - (ii) have the requisite approval of all governmental bodies;
 - (iii) will not violate any judgment, order, law or regulation applicable to Developer or any provisions of the Developer's organizational documents; and
 - (iv) do not conflict with, constitute a default under, or result in the creation of any lien, charge, encumbrance or security interest upon any assets of the Developer under any agreement or instrument to which the Developer is a party or by which the Developer or its assets may be bound or affected.
- (c) Developer represents that, to the best of its knowledge, there are no pending or threatened actions or proceedings before any court or administrative agency which would materially adversely affect the financial condition of the Developer, or the ability of the Developer to perform its obligations under this Agreement, or under any other documents entered into by the Developer pursuant to this Agreement.
- (d) The Developer has made or will make its independent investigation and inquiry into all matters relevant to its entering into and performing its obligations under the Agreement without reliance on any statement or representation of the

Authority except as expressly set forth herein.

4.5 Waiver. The failure on the part of the Developer or the Authority, as the case may be, to complain in any one or more cases of any action or non-action on the part of the other party, or to insist in any one or more cases upon the performance of any of the provisions, covenants, agreements or conditions of this Agreement or to exercise any option contained herewith, no matter how long the same may continue, shall never be deemed or construed to be a waiver by such party of any of its rights hereunder, or a relinquishment for the future of any such provision, covenant, agreement, condition or option. Further it is covenanted and agreed that no waiver at any time of any of the provisions hereof by the Developer or the Authority shall be construed as a waiver of any of the other provisions hereof, and that a waiver at any time of any of the provisions hereof shall not be construed as a waiver at any subsequent time of the same provisions.

4.6 Limitation on Damages. Notwithstanding anything in this Agreement to the contrary, neither party shall be liable to the other for any consequential, incidental, or punitive damages.

4.7 No Partnership. Nothing contained under this Agreement shall be construed to create a partnership or joint venture between the Authority and the Developer or to make the Authority an associate in any way of the Developer in the conduct of the Developer's business, nor shall the Authority be liable for any debts incurred by the Developer in the conduct of the Developer's business.

4.8 Attorneys' Fees. In any litigation between the parties arising out of this Agreement, or in connection with any other actions taken or notices delivered in relation to a default by any party to this Agreement, the non-prevailing party shall pay to the prevailing party the prevailing party's reasonable attorneys' fees and costs incurred in connection with the enforcement of the terms of this Agreement.

4.9 Brokers. Each warrants and represents to the other that it has had no dealings or negotiations with any broker or agent in connection with this Agreement. Each agrees to pay, and shall hold the other harmless and indemnified from and against any and all costs, expenses (including without limitation counsel fees) or liability for any compensation, commissions and charges claimed by any broker or agent resulting from any such dealings by the indemnifying party with respect to this Agreement or the negotiation therefor.

4.10 Authority's Cost. The Developer shall reimburse the Authority for its reasonable attorneys' fees and out-of-pocket expenses incurred in connection with any request by the Developer for the Authority's consent hereunder.

4.11 Headings and Captions for Convenience Only. The captions and headings throughout this Agreement are for convenience of reference only and the words contained therein shall in no way be held or deemed to define, limit, explain, modify, amplify or add to the interpretation, construction or meaning of any provisions of, or the scope or intent of this Agreement, nor in any way affect this Agreement, and shall have no legal effect.

4.12 Term of Agreement. This Agreement, if not earlier terminated pursuant to Section 2.1 or other sections of this Agreement, shall expire once the parties have entered into the

Ground Lease and the Developer and the Authority have satisfied all of their other obligations under this Agreement.

4.13 Severability. If any term, covenant, condition or provision of this Agreement or the application thereof to any person or circumstance shall, at any time or to any extent, be invalid or unenforceable, the remaining terms, covenants, conditions and provisions shall not be affected thereby, and each term, covenant, condition and provision of this Agreement shall be valid and be enforced to the fullest extent permitted by law.

4.14 Dates. If the end of any time period herein, or if any specified date, falls on a weekend or national or state holiday, then the end of such time period, or such date, as the case may be, shall be extended to the next business day thereafter. Any period provided herein for action by the Developer shall end at 4:00 P.M. on the last day of such period, unless this Agreement provides that performance is due by a different time on that day.

4.15 Governing Law. This Agreement shall be governed exclusively by the provisions of the laws of the Commonwealth of Massachusetts.

Exhibits:

Exhibit A: Plan of Land

Exhibit B: Ground Lease

[Signature Page Follows]

Executed as a document under seal on this _____ day of _____, 202____.

HINGHAM HOUSING AUTHORITY,
By Its Board of Commissioners

DEVELOPER:

By: _____
Name:
Title:

GROUND LEASE

Between

THE HINGHAM HOUSING AUTHORITY

And

Dated as of _____

GROUND LEASE

This Ground Lease (this “**Lease**”) is entered into as of this _____ day of _____, 202____, by and between the **Hingham Housing Authority** (the “**Authority**”), a body politic and corporate of the Commonwealth of Massachusetts, having an address of 30 Thaxter Street, Hingham, MA 02043 and _____ (“**Tenant**”), a Massachusetts corporation/limited liability company, having an address of _____.

BACKGROUND

WHEREAS, the Authority is the owner of a 3.75-acre parcel of land, more or less, located at 100 Beal Street, Hingham, Massachusetts and described in a Quitclaim Deed recorded with the Plymouth County Registry of Deeds (the “Registry”) in Book XXX, Page XXX (the “**Land**”), which is shown more particularly on the plan attached hereto as Exhibit and incorporated herein;

WHEREAS, on _____, the Authority issued a Request for Proposals (the “**RFP**”), incorporated herein by reference and a copy of which is on file with the Authority, soliciting proposals for the development, construction and operation of _____ on the Land (the “**Property**”);

WHEREAS, _____ (the “**Developer**”) submitted a proposal in response to the RFP (the “**Proposal**”), incorporated herein by reference and a copy of which is on file with the Authority’s Executive Director, proposing to develop, construct, operate, and maintain on the Property _____ (____) residential dwellings and to rent the dwellings to low and moderate income households (the “**Project**”);

WHEREAS, the Authority accepted the Proposal;

WHEREAS, the Authority and the Developer entered into a Land Development Agreement dated _____, 2024 (the “**LDA**”), incorporated herein by reference and a copy of which is on file with the Authority Clerk, that stated the conditions that must be satisfied before the Authority would lease the Property and set forth the basic terms regarding the development of the Property;

WHEREAS, the Developer is required under the LDA to obtain permits and financing necessary to undertake the Project;

WHEREAS, the Developer has formed the Tenant for the purpose of entering into this Lease with the Authority, all as provided in the LDA;

WHEREAS, pursuant to the LDA, the Developer obtained a [Comprehensive Permit] from the [Hingham Zoning Board of Appeals _____] (as amended from time to time as permitted herein, the “**Comprehensive Permit**”), pursuant to which Tenant will construct the Project, all as set forth in the Comprehensive Permit;

WHEREAS, Tenant has obtained a construction loan for the Project from _____ (the “**Construction Loan**”), which Construction Loan is presently secured by a first priority leasehold mortgage on the Premises (defined in Section 1.1) (the “**Construction Mortgage**”);

WHEREAS, Tenant has obtained a commitment for a permanent loan of \$ _____ (the “**Permanent Loan**”) for the Project from _____ (“**Permanent Lender**”), which Permanent Loan shall be secured by a first priority leasehold mortgage on the Premises (the “**Senior Permanent Mortgage**”, and has entered into a Regulatory Agreement with the Massachusetts Executive Office of Housing and Livable Communities (“**EOHLC**”) and the Authority, recorded with the Registry in Book _____, Page _____ (the “**Regulatory Agreement**”);

WHEREAS, the Tenant has obtained commitments for subordinate loans from various lenders which loans shall be secured by a leasehold mortgage on the Premises junior to the Senior Permanent Mortgage pursuant to the terms of a master subordination agreement to be recorded with said Deeds, therewith;

WHEREAS, the Authority and Tenant wish to enter into this Lease to set forth the terms and conditions under which Tenant will develop, construct and operate the Project substantially in accordance with the RFP, the Proposal, the LDA, the Restriction (defined in Section 8.6), and this Lease (collectively, the “**Project Documents**”).

NOW, THEREFORE, in consideration of the mutual promises of the parties contained herein and other good and valuable consideration each to the other paid, receipt of which is hereby acknowledged, the parties hereby agree as follows:

ARTICLE 1 - PREMISES

1.1 Lease of Premises. The Authority, for and in consideration of the covenants and agreements hereinafter contained on the part of Tenant to be paid, kept and performed, hereby leases and demises to Tenant, and Tenant hereby leases from the Authority, for the Term (defined in Section 2.1), upon the terms and conditions set forth herein, the following described premises (collectively, the “**Leased Premises**”):

The Property and any and all improvements thereon, together with any and all easements, rights, privileges, licenses, covenants and other matters that benefit or burden the Property or the use or occupancy of or access to the Property, whether or not of record, subject to the terms of this Lease.

1.2 Premises. The Leased Premises and any and all improvements constructed or placed on the Leased Premises from the date of this Lease (the “**Improvements**”) are referred to, collectively, as the “**Premises.**”

1.3 Condition of the Premises. Tenant acknowledges that it has leased the Premises after a full and complete examination thereof and finds the Premises satisfactory for its intended use and, notwithstanding the foregoing, accepts the Premises in its “AS IS” condition, in the condition and state the Premises are in as of the Commencement Date (as defined herein),

without any representation or warranty, express or implied, by the Authority except for those representations, covenants and agreements stated expressly in this Lease, if any. Landlord is not required to, and shall not, furnish any services or facilities or to make any repairs or alterations in or to the Premises, unless otherwise required by a government authority and except as otherwise required in this Ground Lease.

1.3 Authority's Access Rights. The Authority shall have the right, upon reasonable prior notice to Tenant, consisting of not less than 48 hours' notice (except in the event of an emergency, in which case notice shall be given as soon as reasonably practicable), to enter the Premises from time to time and at any time during the Term of this Lease for the purposes of inspecting the Premises, reviewing Tenant's compliance with applicable Legal Requirements, and exercising any other reserved rights, provided the Authority does not unreasonably interfere with the use of the Premises by Tenant and other entitled thereto. The Authority will repair any damage caused by the Authority to the Premises or to Tenant's other property arising out of such entry.

1.6 Quiet Enjoyment. The Authority covenants and agrees with Tenant that, so long as no Event of Default (defined in Section 14.1) has occurred under this Lease, the Tenant shall and may, at all times during the term of this Lease, peaceably and quietly have, hold and enjoy the Premises and all rights, appurtenances and privileges belonging or in any way appertaining thereto without hindrance or molestation, provided that the Authority and its authorized agents may enter upon and examine the Premises as provided herein.

ARTICLE 2 - TERM

2.1 Term. The Premises are hereby leased unto Tenant and its successors and assigns for a term of ninety-nine (99) years (the "**Term**"), commencing on _____ (the "**Commencement Date**") and ending on _____ (unless earlier terminated in accordance with the provisions hereof, the "**Termination Date**").

ARTICLE 3 - TENANT'S IMPROVEMENTS

3.1 Initial Improvements. (a) Tenant shall construct _____ (____) residential units on the Premises and any and all other improvements shown on and described in the plans and specifications attached to the Comprehensive Permit (collectively, the "**Initial Improvements**"), which are incorporated herein by reference and a copy of which are on file with the Authority Clerk (the "**Design Plans**"), with such construction commencing within sixty (60) days of the Commencement Date (as the same may be extended in accordance with Section 3.1(b), the "**Construction Start Date**"). The construction of the Initial Improvements shall comply with the Comprehensive Permit, as the same may be amended from time to time, except that in no event shall the number of affordable units be reduced, and, further, no other material changes shall be made to any other provision of the Comprehensive Permit that relates to this Lease unless the Tenant submits an application to the Hingham Zoning Board of Appeals for a modification of the Comprehensive Permit (any or all of the foregoing, a "**Material Modification**"). Tenant shall construct the Initial Improvements using commercially diligent efforts in material accordance with the Final Plans (defined in Section 3.3) and in accordance with the Schedule of Performance set forth below. For purposes of this Lease, construction of the Initial Improvements shall be deemed to have "**commenced**" upon the commencement of

actual physical work (including, without limitation, site work) on the Premises pursuant to a full, unconditional building permit for the construction of the Initial Improvements, and “**Final Completion**” of the Initial Improvements will be deemed to have occurred upon the issuance of the final permanent certificate of occupancy for the Initial Improvements (the “**Final Completion Date**”). The Initial Improvements shall reach Final Completion within two (2) years of the Construction Start Date (the “**Schedule of Performance**”).

(b) Notwithstanding the foregoing, if the commencement of the Initial Improvements is prevented or delayed beyond the Construction Start Date or the construction is interrupted after its commencement because of strikes, lockouts, labor troubles, inability to procure materials, power failures, riots, insurrection, war, appeals or litigation relating to any required permits or licenses necessary to construct and use the Initial Improvements for the Permitted Uses (defined in Section 8.1), or other causes beyond Tenant’s reasonable control (provided, however, that lack of funds shall not be deemed such a cause) (collectively, “**Force Majeure**”), then the commencement of the Initial Improvements and/or the completion of the Initial Improvements shall be reasonably extended for the period of the delay.

3.3 Approval and Delivery of Final Plans. Before Tenant applies for a building permit, Tenant shall provide the Authority with a copy of the final construction drawings for the Initial Improvements for review and approval, which shall not be withheld if said drawings are substantially similar to the Design Plans (the final revised construction drawings so submitted to the Authority are hereinafter referred to as the “**Final Plans**”). The issuance of a building permit or permits shall be deemed to constitute the approval of said Final Plans.

3.4 Required Permits. Tenant shall obtain any and all permits, approvals and licenses from governmental authorities required for construction and use of the Initial Improvements (“**Required Permits**”), and for any other alterations, removals, installations, additions, changes, replacements or improvements now or hereafter made to the Premises (collectively with the Initial Improvements, “**Tenant Work**”), and shall, upon written request, provide the Authority with a copy of each. Tenant may occupy all or part of the Premises under temporary or conditional certificates of occupancy, but shall not be relieved from the obligation of obtaining permanent certificates of occupancy for the Initial Improvements or other similar licenses or permits required to permit the Premises to be used and occupied for the Permitted Uses.

The Authority agrees to reasonably cooperate with Tenant in executing any and all applications and other documents which may be necessary at any time to obtain or maintain any Required Permits, all at Tenant’s sole cost, but Tenant acknowledges that the Authority has no control over and cannot guarantee that permits required from municipal boards or officers within its statutory or regulatory authority will be granted or fees waived.

3.5 Ownership. At all times during the Term of this Lease, the Improvements and any equipment thereon shall be owned by Tenant, and Tenant alone shall be entitled to tax attributes of ownership, including, without limitation, the right to claim depreciation or cost recovery deductions. Upon the expiration or earlier termination of this Lease, Tenant shall have the right, but not the obligation, to remove the Improvements from the Premises. If Tenant elects not to remove the Improvements, and subject to the rights of the Permitted Mortgagees (defined in Section 13.2) and the rights of tenants in possession of residential units under leases with the Tenant or its agent(s), upon the expiration or earlier termination of this Lease, title to the

Improvements shall immediately vest in the Authority and shall be surrendered at that time in accordance with Section 15.1 below.

3.6 Manner of Construction; Cost of Initial Improvements. Tenant shall construct all Tenant Work in a good and workmanlike manner, in compliance with all Legal Requirements and good engineering and construction practices. The Initial Improvements shall be constructed in material compliance with the Final Plans and in strict compliance with the Required Permits. Tenant shall take all reasonably necessary measures to (i) minimize dust, noise and construction traffic, (ii) minimize any damage, disruption or inconvenience caused by Tenant Work, and (iii) make adequate provision for the safety and convenience of all persons affected thereby and to properly police same. Tenant shall pay (or cause to be paid) all costs and expenses associated with any Tenant Work and shall defend, indemnify and hold the Authority Parties (defined in Section 7.13) harmless from and against any and all claims, damages, losses, penalties, costs, expenses, demands, fees and/or liabilities (including without limitation reasonable legal fees) (collectively, “**Claims**”) attributable to Tenant Work.

3.7 Liens. If any mechanic’s, laborer’s or materialman’s lien shall at any time during the Term be filed against the Premises, the underlying fee, or any part thereof with respect to the performance of any labor or the furnishing of any materials to, by or for Tenant or anyone claiming under Tenant, Tenant shall, within sixty (60) days after notice of the filing thereof, cause the same to be discharged of record by payment, deposit, bond, order of a court of competent jurisdiction or otherwise. If Tenant shall fail to cause such lien to be discharged within the period aforesaid, then, in addition to any other right or remedy, the Authority may, but shall not be obligated to, discharge or secure the same, and any amount so paid by the Authority and all costs and expenses incurred by the Authority in connection therewith, shall be paid by Tenant within thirty (30) days from the presentment of invoices therefor.

3.8 No Consent. Nothing contained in this Lease shall be deemed or construed in any way as constituting the consent to payment or request of the Authority, express or implied, by inference or otherwise, to any contractor, subcontractor, laborer or materialman for the performance of any labor or the furnishing of any materials for any specific improvement, alteration to, or repair of the Premises or any part thereof.

ARTICLE 4 - RENT

4.1 Base Rent. Commencing on the Commencement Date and continuing thereafter throughout the Term, Tenant shall pay to the Authority annual base rent (“**Base Rent**”) in the amount of _____ Dollar (\$ _____) per year.

4.2 Additional Rent. In addition, Tenant shall pay any fee, charge or other amounts required to be paid by Tenant to the Authority (or to others under Section 5 hereof) under this Lease as additional rent (“**Additional Rent**”). Base Rent and Additional Rent (collectively, “**Rent**”) shall be paid without counterclaim, notice, demand, abatement or offset at the Authority’s address set out in Section 18.2.

4.3 Late Payments. Any payment of Rent due to the Authority hereunder not paid when due shall bear interest at a rate of ten percent (10%) per annum (the “**Default Rate**”) for each month or fraction thereof from the due date until paid in full at the Default Rate.

4.4 Triple Net Lease. Except as stated otherwise, Tenant acknowledges and agrees that this is an absolute triple net lease, and that all costs, expenses and obligations of any kind relating to the Premises, including without limitation all construction, alterations, maintenance, repairs, restoration, reconstruction and replacements as hereinafter provided, which may arise or become due during the Term hereof, shall be paid by Tenant at Tenant’s sole cost and expense. All payments of Rent shall be absolutely net to the Authority so that this Lease shall yield to the Authority the Rent herein specified in each year during the Term of this Lease free of any taxes, assessments, charges, fees, impositions or deductions of any kind charged, assessed or imposed on or against the Premises, for which Tenant shall bear the sole responsibility. The Authority shall not be expected or required to pay any such charge, assessment or imposition, or furnish any services to the Premises or be under any obligation or liability hereunder.

ARTICLE 5- TAXES AND UTILITIES

5.1 Impositions. Tenant shall pay or cause to be paid as Additional Rent, before any fine, penalty, interest or cost may be added thereto for the non-payment thereof, all of the following, if applicable: real estate and other taxes, assessments, special use or assessment district taxes, water and sewer charges, charges for meters, excises, levies, license and permit fees and all other governmental charges of any kind and nature which during the Term may be assessed, levied, imposed upon or become due with respect to, or become a lien on the Premises or the leasehold, and payments in lieu of such taxes, assessments, charges or fees, whether such charges are made directly to Tenant or through or in the name of the Authority. All such charges shall be referred to herein as “**Impositions.**” Tenant shall have the right to contest or object to the amount or validity of any Imposition but shall not withhold payment of any Imposition while any such contest or objection is pending. Tenant, upon request of the Authority, shall furnish to the Authority within thirty (30) days of the date when any Imposition would become delinquent, official receipts of the appropriate taxing authority, or other evidence reasonably satisfactory to the Authority, evidencing payment thereof.

5.2 Utilities. Tenant shall be responsible, at its sole cost and expense, for installing and providing utilities to serve the Premises. Tenant shall pay, or shall cause to be paid, directly to the utility provider, all charges by any public authority or public utility for water, electricity, telephone, gas, sewer and other services supplied or rendered to the Premises, and service inspections made therefor, whether called charge, rate, tax, betterment, assessment, fee or otherwise and whether such charges are made directly to Tenant or through or in the name of the Authority (“**Utility Charges**”). Tenant covenants and agrees to hold the Authority harmless from any costs, fees and/or charges incurred in connection herewith, and to pay on demand any and all costs incurred by the Authority for utilities and similar services. The Authority makes no representation or warranty that existing sources of supply, distribution points or utilities are adequate or sufficient to supply the Improvements.

5.3 Personal Property. Tenant shall pay promptly when due all taxes which may be imposed upon any and all personal property (including fixtures taxed as personal property) in, on or within the Premises directly to the assessing party.

ARTICLE 6 - REPAIRS AND MAINTENANCE

6.1 Repair and Maintenance. Throughout the Term of this Lease, Tenant, at its sole cost and expense, shall take good care of the Premises (including all Improvements) and all privately owned roadways, sidewalks, curbs, landscaped areas, fences and entranceways adjoining the same, and shall keep the same in good, safe and clean order and condition, (except for reasonable wear and tear and damage from a Taking (defined in Section 11.1 below) or from fire or other casualty after the last repair, replacement, restoration or renewal required to be made by Tenant pursuant to its obligations hereunder), and shall make all necessary repairs thereto, interior and exterior, structural and non-structural, ordinary and extraordinary, and foreseen and unforeseen in order to keep the Premises in the condition required hereunder throughout the Term. Without limitation, Tenant shall keep the driveways and privately-owned sidewalks shown on Exhibit B in good order and condition. Tenant shall keep the Premises free of accumulations of dirt and rubbish, and shall use all reasonable precautions to prevent waste, damage or injury to the Premises.

6.2 No Obligation of the Authority. Except as otherwise expressly provided herein, the Authority shall in no event be required to maintain or repair or to make any alterations, restoration, replacements, changes, additions or improvements to the Premises during the Term of this Lease.

ARTICLE 7 - INSURANCE AND INDEMNITY

7.1 Property Insurance. Tenant shall, at its sole expense, obtain and keep in force during the Term of this Lease “all-risk” property insurance coverage insurance on the Initial Improvements and other Improvements, including, but not limited to, machinery and boilers, naming Tenant as the insured, and otherwise in the customary form for property insurance coverage of buildings of similar character in the Plymouth County area, naming the Authority as an additional insured. The amount of such insurance shall not be less than one hundred percent (100%) of the full replacement value of the Initial Improvements and other Improvements, as determined from time to time.

7.2 Builder’s Risk. During the period of any Tenant Work, Tenant shall also keep in full force and effect, at its sole cost and expense, “Builder’s All Risk” insurance against loss or damage on a completed value non-reporting basis from such hazards and in such amounts as the Authority may reasonably require.

7.3 Liability Insurance. Throughout the Term of this Lease, Tenant shall maintain, for the benefit of the Authority and Tenant, and naming the Authority as an additional insured, the following insurance: (i) general liability insurance, written on an occurrence basis, with a combined single limit of not less than Two Million Dollars (\$2,000,000.00) for injury to or death of any one person, for injury to or death of any number of persons in one occurrence, and for damage to property, insuring against any and all liability of the Authority, Tenant, and any Permitted Mortgagee (defined in Section 13.2), including, without limitation, coverage for contractual liability and broad form property damage, with respect to the Premises or arising out of the maintenance, use, or occupancy of the Premises; and (ii) excess liability (so-called umbrella) coverage having a limit of Five Million Dollars (\$5,000,000.00) written on an

occurrence basis. Such liability insurance shall be primary and not contributing to any insurance available to the Authority, and the Authority's insurance shall be in excess thereto.

7.4 Business Personal Property Insurance. Tenant agrees that the Authority shall have no responsibility or liability for any loss or damage or injury from any cause whatsoever, including theft or otherwise of fixtures, improvements, or other personal property of Tenant or tenants of residential units on the Premises. Throughout the Term, Tenant shall maintain personal property insurance insuring all equipment, trade fixtures, inventory, fixtures and personal property located on or in the Premises for perils in amounts at least equal to the full replacement cost thereof.

7.5 Insurance Carried by Contractors. During the construction of any Improvements, Tenant shall also require the construction manager and/or general contractor to maintain (i) for the benefit of Tenant and the Authority, as additional insured, commercial general liability insurance, including products and completed operations coverage, against any claims for bodily injury, death and property damage occurring upon, in or about the Premises and on, in and about the adjoining sidewalks and passageways during the construction of the Initial Improvements for at least \$3,000,000 combined single limit; (ii) worker's compensation in amounts required by statute; (iii) employer's liability insurance with limits of not less than One Million Dollars (\$1,000,000), and (iv) automobile liability insurance, including the ownership, maintenance and operation of any automotive equipment, owned, hired or nonowned, in an amount not less than One Million Dollars (\$1,000,000) combined single limit.

7.6 Insurance Coverage Increases. On the fifth (5th) anniversary of the Commencement Date, and every five (5) years thereafter, or upon the Authority's reasonable request (which shall occur not more often than once every three (3) years), the limits of any of the above-mentioned insurance coverages shall be increased at the written request of the Authority to amounts reasonably requested by the Authority to reflect inflation or changes in the nature or degree of risks insured or to protect against judgments from time to time being awarded in Massachusetts for injury, death and property damage, but not to exceed the amounts of coverage generally maintained at the time in question for similar residential developments or properties in Massachusetts.

7.7 Insurance Carriers, Policies. All insurance provided for in this Article 7 shall be effected under valid and enforceable policies, issued by insurers of recognized responsibility licensed and doing business in Massachusetts and having a so-called Best's Rating of "A-" or better, or, if such rating is no longer issued, an equal or better rating by a successor insurance carrier rating service reasonably acceptable to the Authority. Tenant shall submit duplicate originals of all the policies required to be carried hereunder on the Commencement Date and on each anniversary thereof, or at the Authority's reasonable request.

7.8 Blanket Policy. Nothing in this Article 7 shall prevent Tenant from taking out insurance of the kind and in the amounts provided for under this Article 7 under a blanket insurance policy or policies covering other properties as well as the Premises, provided, however, that any such policy or policies of blanket insurance (i) shall specify therein, or in a written statement from the insurers under such policy or policies specifying, the amount of the total insurance allocated to the Premises, which amounts shall not be less than the amounts required by this Article 7, and (ii) such amounts so specified shall be sufficient to prevent any of

the insureds from becoming a co-insurer within the terms of the applicable policy or policies, and provided further, however, that any such policy or policies of blanket insurance shall, as to the Premises, otherwise comply as to endorsements and coverage with the provisions of this Article 7.

7.9 Non-cancellation. Each policy or binder issued by an insurer shall contain an agreement by the insurer that such policy shall not be canceled, non-renewed or substantially modified without at least thirty (30) days' prior written notice to the Authority (ten (10) days' prior written notice in the case of non-payment of premiums).

7.10 No Separate Insurance. Tenant shall not take out separate insurance concurrent in form or contributing in the event of loss with that required in this Article 7 to be furnished by, or which may reasonably be required to be furnished by, Tenant unless the Authority and Tenant are included therein as insureds, with loss payable as in this Lease provided. Tenant shall immediately notify the Authority of the placing of any such separate insurance and shall cause the same to be promptly delivered to the Authority.

7.11 General Requirements. All policies of insurance provided for in Article 7 hereof shall name the Authority and Tenant as the insureds as their respective interests may appear. Subject to Exhibit C and to the requirements of any documents evidencing, relating to or securing any financing held by a Permitted Mortgagee (as defined in Section 13.2), the loss, if any, under such policies shall be adjusted with the insurance companies by Tenant, and shall be payable to Tenant, except that all such payments shall be made to the Authority during the last three (3) years of the Term of this Lease. All such policies shall provide that the loss, if any, thereunder shall be adjusted and paid as hereinabove provided. Each such policy shall, to the extent obtainable, contain a provision that no act or omission of any of the Tenant Parties (defined in Section 7.13 below) shall affect or limit the obligation of the insurance company to pay the amount of any loss sustained. Tenant hereby waives any and all rights of recovery which it might otherwise have against the Authority or the other Authority Parties for any loss or damage to Tenant's property or improvements in the Premises which are either required to be insured under the terms of this Lease or which Tenant, in the absence of any such requirement, elects to insure, notwithstanding that the loss or damage may result from the negligence, willful act or default under the terms of this Lease by the Authority or any of the other Tenant Parties. Tenant and its contractors, subcontractors and independent contractors and their insurers shall, to the extent permitted by their approved insurers, waive all rights of subrogation against the Authority and/or the other Authority Parties for losses arising from work performed by each. Any insurance or self-insurance that the Authority elects to maintain shall be excess of Tenant's insurance and from other parties insurance and shall not contribute to it.

7.12 The Authority's Right to Pay Premiums. Tenant shall pay all of the premiums for all the policies of insurance referred to in this Article 7, and the cost of such insurance shall be deemed to be Additional Rent under this Lease; provided, however, that such insurance premiums may be paid by Tenant directly to its insurer on or before the date such payment is due, or by a Permitted Mortgagee in accordance with the terms of the loan documents for the loan to Tenant. Notwithstanding anything in this Lease to the contrary, in the event of the failure of Tenant either to effect insurance in the names and amounts called for in this Lease or to pay the premiums for the insurance or to deliver the policies to the Authority, the Authority shall have the right, but not the obligation, to effect such insurance and pay the premiums for the

insurance without regard to any cure rights held by the Permitted Mortgagees, which premiums shall be repayable to the Authority as Additional Rent on demand, provided, however, that the Authority gives Tenant and all Permitted Mortgagees written notice of the same at least fourteen (14) days prior to procuring such insurance.

7.13 Tenant's Indemnification. (a) Tenant shall defend (with counsel reasonably acceptable to the Authority), indemnify and hold harmless the Authority Parties (as defined below) from and against any and all Claims which may be imposed upon or incurred by or asserted against the Authority Parties by reason of any of the following occurrences:

(i) any work or thing done during the Term of this Lease in, on or about the Premises or any part thereof, including during construction of the Initial Improvements and any other Tenant Work, by Tenant or any of the Tenant Parties (as defined below);

(ii) any use, non-use, possession, occupation, condition, operation, maintenance or management of the Premises or any part thereof, including any sidewalk or curb appurtenant to the Premises, during the Term of this Lease by Tenant or any of its agents, contractors, servants, employees, subtenants, occupants, guests, licensees, operators, or invitees (together with Tenant, the "***Tenant Parties***");

(iii) any negligence or willful misconduct on the part of the Tenant Parties; and

(iv) any accident, injury or damage to any person or property occurring in, on or about the Premises or any part thereof, including any privately owned roadway, sidewalk or curb appurtenant to the Premises, unless the same occurs solely as a result of the gross negligence or wrongful act of any the Authority or its employees, contractors, agents, and representatives (collectively with the Authority, the "***Authority Parties***").

(b) The foregoing express obligation of indemnification shall not be construed to negate or abridge any other obligation of indemnification running to the Authority which would exist at common law or under any other provision of this Lease, and the extent of the obligation of indemnification shall not be limited by any provision of insurance undertaken in accordance with this Article 7. This Lease is made on the express condition that the Authority shall not be liable for, or suffer loss by reason of, any damage or injury to any property, fixtures, buildings or other improvements, or to any person or persons, at any time on the Premises, specifically including any damage or injury to the person or property of Tenant or any of the Tenant Parties, from whatever cause, in any way connected with the condition, use, occupational safety or occupancy of the Premises, except to the extent directly and solely caused by the gross negligence or willful misconduct of any of the Authority Parties.

(c) If the Authority obtains separate counsel due to reasonable concerns that its interests and that of Tenant may be adverse or that counsel provided by Tenant may have a conflict in interest or is not providing effective representation of the Authority, then the reasonable expenses of such separate counsel shall be at Tenant's expense.

(d) The foregoing indemnity and hold harmless agreement shall include indemnity against all costs, expenses and liabilities incurred in or in connection with any such claim or proceeding brought thereon, and the defense thereof with counsel reasonably acceptable to the

Authority or counsel selected by an insurance company which has accepted liability for any such claim.

7.14 Survival of Indemnities. The provisions of Section 7.13 shall survive the termination or expiration of this Lease.

ARTICLE 8 - USE OF PREMISES

8.1 Permitted Uses. The Premises and the Improvements shall be used exclusively for affordable rental housing and uses incidental thereto, as set forth more particularly in Section 9.2 and the Comprehensive Permit (collectively, the “**Permitted Uses**”).

8.2 Legal Requirements. Throughout the Term of this Lease, Tenant, at its sole cost and expense, shall promptly comply with all laws, ordinances, by-laws, orders, rules, regulations and requirements of all federal, state and municipal governments, departments, housing authorities, boards and officers, foreseen or unforeseen, ordinary as well as extraordinary, including without limitation the Comprehensive Permit, which may at the time in question be applicable to the Premises and the sidewalks and curbs adjoining the same, or to the use or manner of use of the same or to any of the Tenant Parties, as said laws, ordinances, by-laws, orders, rules, regulations and requirements of all federal, state and municipal governments, departments, housing authorities, boards and officers shall at the time in question be in force and effect (collectively, “**Legal Requirements**”).

8.3 Contests. Tenant shall have the right (but not the obligation) to contest by appropriate legal proceedings diligently conducted in good faith, in the name of Tenant, without cost or expense to the Authority, the validity or application of any Legal Requirement, subject to Tenant providing the Authority with written notice thereof on or before the date of contesting same, and further subject to the following:

(a) If, by the terms of any such Legal Requirement, compliance therewith pending the prosecution of any such proceeding may legally be delayed without the incurrence of any lien, charge or liability of any kind against the Premises or any part thereof and without subjecting Tenant or the Authority to any liability, civil or criminal, for failure so to comply therewith, Tenant may delay compliance therewith until the final determination of such proceeding; and

(b) If any lien, charge or civil liability would be incurred by reason of any such delay, Tenant nevertheless may contest as aforesaid and delay as aforesaid, provided that such delay would not subject the Authority to criminal liability or fine, and provided that Tenant (i) bonds over such lien or furnishes to the Authority security, reasonably satisfactory to the Authority, against any loss or injury by reason of such contest or delay, and (ii) prosecutes the contest with due diligence.

8.4 Compliance with Insurance Requirements. Throughout the Term of this Lease, Tenant, at its expense, shall observe and comply with the requirements of all policies of public liability, casualty and all other policies of insurance required to be supplied by Tenant at any time in force with respect to the Premises.